

MASTER VENDOR SERVICES AGREEMENT

Contract Reference: NGWS-MSA-2026-014

This Master Vendor Services Agreement ("Agreement") is entered into as of 01 August 2026 ("Effective Date"), by and between:

Client: NextUpgrad Web Solutions Pvt. Ltd., a company incorporated under the Companies Act 2013, having its registered office at 6th Floor, Cyber Hub, DLF Phase 2, Gurugram, Haryana – 122 002, India ("Client" or "NGWS")

Vendor: CloudMind Technologies Pvt. Ltd., a company incorporated under the Companies Act 2013, having its registered office at Tower B, Technopark Phase III, Thiruvananthapuram, Kerala – 695 581, India ("Vendor" or "CloudMind")

1. Scope of Services

1.1 The Vendor agrees to provide AI/ML engineering services including but not limited to: (a) Retrieval-Augmented Generation (RAG) system development; (b) Large Language Model (LLM) integration; (c) Vector database design and optimisation; (d) API development and third-party integrations; (e) Technical documentation and architecture review.

1.2 Services shall be performed in accordance with Statements of Work (SOW) mutually agreed in writing.

2. Payment Terms

2.1 The Client shall pay the Vendor as specified in each SOW, typically structured as: 30% advance upon SOW signing; 40% upon milestone delivery; 30% upon final acceptance.

2.2 Payment Terms: Net 30 days from invoice date. Invoices must reference this Contract number.

2.3 Late payment shall attract interest at 1.5% per month on outstanding amounts.

2.4 All amounts are exclusive of applicable taxes (GST). Vendor shall submit tax-compliant invoices.

3. Intellectual Property

3.1 All deliverables created specifically for the Client under this Agreement shall vest exclusively with the Client upon full payment.

3.2 Vendor retains ownership of pre-existing IP, tools, frameworks, and methodologies.

3.3 Vendor grants the Client a perpetual, royalty-free licence to use any Vendor IP embedded in deliverables.

4. Confidentiality

4.1 Each party agrees to hold the other's Confidential Information in strict confidence for a period of 3 years post-termination.

4.2 Confidential Information excludes information that is: (a) publicly available; (b) independently developed; (c) required to be disclosed by law.

5. Term and Termination

5.1 This Agreement commences on the Effective Date and continues for 24 months unless terminated earlier.

5.2 Either party may terminate with 30 days' written notice.

5.3 The Client may terminate immediately for material breach unremedied within 10 business days of written notice.

6. Limitation of Liability

6.1 Neither party shall be liable for indirect, incidental, or consequential damages.

6.2 Vendor's total liability shall not exceed the total fees paid in the 6 months preceding the claim.

7. Governing Law & Dispute Resolution

7.1 This Agreement is governed by the laws of India.

7.2 Disputes shall be resolved first by good-faith negotiation (30 days), then by arbitration under the Arbitration and Conciliation Act 1996, seated at Gurugram.

Signatures

For NextUpgrad Web Solutions Pvt. Ltd.:

Name: Pranjul Rathour

Title: GenAI Engineer & Director

Date: 01 August 2026

For CloudMind Technologies Pvt. Ltd.:

Name: Arjun Krishnamurthy

Title: Chief Technology Officer

Date: 01 August 2026